

Customs Tariff Determination of Origin of Goods under the Comprehensive Economic Cooperation Agreement between the Republic of India and Republic of Singapore Rules, 2005

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Customs Tariff Determination of Origin of Goods under the Comprehensive Economic Cooperation Agreement between the Republic of India and Republic of Singapore Rules, 2005

UNION OF INDIA

India

Customs Tariff Determination of Origin of Goods under the Comprehensive Economic Cooperation Agreement between the Republic of India and Republic of Singapore Rules, 2005

Rule

CUSTOMS-TARIFF-DETERMINATION-OF-ORIGIN-OF-GOODS-UNDER-THE-COMPREHENSIVE-ECONOMIC-COOPERATION-AGREEMENT-BETWEEN-THE-REPUBLIC-OF-INDIA-AND-REPUBLIC-OF-SINGAPORE-RULES-2005 of 2005

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Customs Tariff Determination of Origin of Goods under the Comprehensive Economic Cooperation Agreement between the Republic of India and Republic of Singapore Rules, 2005

Published vide Notification No. S.O. 1037(E), dated 20.7.2005

Last Updated 20th September, 2018

S.O. 1037(E). - In exercise of the power conferred by Sub-section (1) of Section 5 of the Customs Tariff Act, 1975 (51 of 1975

), the Central Government hereby makes the following rules, namely:-

1.

Short Title and Commencement.

(1)

These Rules may be called 'Rules of Origin' for determining the origin of products eligible for the preferential tariff concessions pursuant to Comprehensive Economic Cooperation Agreement between Republic of India and Republic of Singapore (hereinafter referred to as 'the Agreement'), the following Rules shall apply;

2.

They shall come into force on the 1st day of August 2005.

2. Definition.

- For the purposes of this Chapter:

(i)

carrier refers to any vehicle for air, sea, and land transport;

(ii)

CIF price or CIF value refers to the price actually paid or payable to the exporter for the good when the good is loaded out of the carrier, at the port of importation. The price value includes the cost of the good, insurance and freight necessary to deliver the good to the named port of destination;

(iii)

Customs Valuation Agreement means the WTO Agreement on Implementation of Article VII of the General Agreement on Tariffs and Trade 1994;

(iv)

FOB price or FOB value refers to the price actually paid or payable to the exporter for the good when the good is loaded onto the carrier at the named port of exportation. The value includes the cost of the good and all costs necessary to bring the good onto the carrier.

(v)

generally accepted accounting principles refers to the recognised consensus or substantial authoritative support in the territory of a Party at a particular time as to which economic resources and obligations should be recorded as assets and liabilities, which changes in assets and liabilities should be recorded, how the assets and liabilities and changes in them should be measured, what information should be disclosed and how it should be disclosed, and which financial statements should be prepared. These standards may be broad guidelines; application as well as detailed practices, and procedures;

(vi)

Harmonised System means the Harmonised Commodity Description and Coding System;

(vii)

identical and interchangeable materials means materials being of the same kind and commercial quality, possessing the same technical and physical characteristics, and which once they are incorporated into the finished product cannot be distinguished from one another for origin purposes by virtue any markings etc;

(viii)

indirect material means a good used in the production, testing or inspection of a good but not physically incorporated into the good, or a good used in the maintenance of buildings or the operation of equipment associated with the production of a good, including:

(a)

fuel and energy;

(b)

tools, dies, and moulds;

(c)

parts and materials used in the maintenance of equipment and buildings;

- (d)
lubricants, greases, compounding, materials, and other materials used in production or used to operate equipment and buildings;
- (e)
gloves, glasses, footwear, (Sic) safety equipment, and supplies;
- (f)
equipment, devices, and (Sic) for testing or inspecting the goods;
- (g)
catalysts and solvents; and
any other goods that are not incorporated into the good but whose use in the production of the good can reasonably be demonstrated to be part of that production;
- (ix)
material means ingredients, raw materials, parts, components, subassemblies and goods that were physically incorporated into another good or were subject to a process in the production of another good;
- (x)
non-originating material used in production means any material whose country of origin is other than the Parties (imported non-originating) and any material whose origin cannot be determines (undetermined origin);
- (xi)
non-originating material means a material that fulfils the criteria set out in either Rule 4 or Rule 5.
- (xii)
production means methods of obtaining goods including manufacturing, producing, assembling, processing, raising, growing, breeding, mining, extracting, harvesting, fishing, trapping, gathering, collecting, hunting and capturing.

3.

Originating Goods.

- For purposes of this Agreement, products shall be deemed originating and eligible for preferential treatment if they are consigned according to Rule 15 and conform to the origin requirement under any of the following conditions:

- (a)
Products wholly produced or obtained in the territory of the exporting Party, in accordance with Rule 4; or
- (b)
Products not wholly produced or obtained in the territory of the exporting Party, provided that the said products are eligible under Rule 5.

4.

Wholly Obtained or Produced.

- For the purposes of this Agreement, goods wholly obtained or produced in the territory of a Party shall be treated as originating goods of that Party. The following goods only shall be considered as being wholly obtained or produced in a Party:

- (a)
a raw or mineral good product extracted from its soil, waters, seabed, or beneath the seabed;
- (b)
a vegetable good harvested or produced there;
- (c)
an animal born and raised there;
- (d)
a good obtained from animals referred to in (c) above,
- (e)
a good obtained from hunting] trapping, fishing or aquaculture conducted there;
- (f)
a good or sea fishing and other marine goods taken from outside its territory/territorial waters and Exclusive Economic Zone (EEZ) by vessels registered with a Party and flying its Flag;
- (g)
a good processed and/or made on board factory ships registered with a Party and flying its Flag exclusively from

products referred to in paragraph (f) above;

(h)

a good taken by a Party, or a person of a Party, from the sea bed or beneath the sea bad outside the territorial waters/sea of that Party, in accordance with the provisions of the United Nations Convention on the Law of the Sea;

(i)

articles collected there which can on longer perform their original purpose nor are capable of being restored or repaired and are fit only for disposal or recovery of parts or raw materials, or for recycling purposes 4-3 and

(j)

a good produced there exclusively from goods referred to in (a) through (i), or from their derivatives, at any stage of production.

5.

Not Wholly Obtained or Produced.

- 1. Within the meaning of paragraph (b) of Rule 3 and subject to the provisions of Rule 7, 10 and that the final process of manufacturing is performed within the territory of the exporting Party, products would be considered as originating if;

(a)

(i)

the total value of the materials, parts or produce originating from countries other than the Parties or of undetermined origin used in the manufacture of the product does not exceed [sixty-five per cent]

[Substituted '60%' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

of the FOB value of the product so produced or obtained; and,

(ii)

the product so produced or obtained is classified in a heading, at the [six digit]

[Substituted 'four digit' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

level, of the Harmonised System different from those in which all the non-originating materials used in its manufacture are classified; or

(b)

the product satisfies the Product Specific Rules as specified in Annex B.

2. For the purposes of calculating the local value added content, either of the following methods can be applied:

(a)

Direct Method

$$\left[\frac{\text{Value of Originating materials} + \text{Direct Labour Cost} + \text{Direct Overhead Cost} + \text{Profit}}{\text{FOB Price}} \right] \times 100\% \geq 40\%$$

(b)

Indirect Method

$$\left[\frac{\text{Value of Originating materials}}{\text{FOB Price}} \right] \times 100\% \geq 60\%$$

3. For the purpose of paragraph 2, if the material does not satisfy the requirements of paragraph 1, the not-qualifying value of the materials shall be that proportion which cannot be attributed to one or both of the Parties, provided that the requirements of Rule 7 at each state of value accumulation are satisfied.

5A.

[De Minimis.

[Inserted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

- 1. A good that does not undergo a change in tariff classification pursuant to Rule 5 and Annex B in the final process of production shall be considered as originating if:

(a)

for all goods except those falling within chapters 50 through 63 of the Harmonised System:

(i)

the value of all non-originating materials used in its production, which do not undergo the required change in tariff classification, does not exceed ten per cent. of the FOB value of the good; and

(ii)

the good meets all other applicable criteria set forth in the rules for qualifying as an originating good; and

(b)

for goods falling within chapters 50 through 63 of the Harmonised System:

(i)
the total weight of non-originating basic textile materials used in its production, which do not undergo the required change in tariff classification, does not exceed seven per cent. of the total weight of all the basic textile material used;
and

(ii)
the good meets all other applicable criteria set forth in the rules for qualifying as an originating good.

2. The value of such non-originating materials shall be included in the value of non-originating materials for any applicable local value added content requirement for the good.]

6.

Indirect Materials.

- In order to determine whether a product originates in the territory of a Party, any indirect material used to obtain such products shall be treated as originating, whether such material originates in third countries or not, and its value shall be the cost registered in the accounting records of the producer of the good.

7.

Insufficient Operations.

- 1. The following operations or processes shall not be considered as sufficient transformation provided for in Rule 5:

(a)
operations to ensure the preservation of products in good condition during transport and storage (such as drying, freezing, keeping in brine, ventilation, spreading out, chilling, placing in salt, sulphur dioxide or other aqueous solutions, removal of damaged parts, and like operations);

(b)
simple operations consisting of removal of dust, sifting or screening, sorting, classifying, matching (including the making-up of sets of articles), washing, painting, cutting;

(c)
changes of packing and breaking up and assembly of consignments;

(d)
simple cutting, slicing and repacking or placing in bottles, flasks, bags, boxes, fixing on cards or boards, and all other simple packing operations;

(e)
affixing of marks, labels or other like distinguishing signs on products or their packaging;

(f)
simple mixing of products whether or not of different kinds, where one or more components of the mixture do not meet the conditions laid down in this Chapter to enable them to be considered as originating products;

(g)
simple assembly of parts of products to constitute a complete product;

(h)
disassembly;

(i)
slaughter of animals;

(j)
mere dilution with water or another substance that does not materially alter the characteristics of the goods; and

(k)
a combination of two or more operations referred to in paragraphs (a) to (j).

8.

Value of Non-originating Materials.

- The value of a non-originating material used in the production of a good shall be;

(a)
For imported materials, parts or produce, the CIF value at the time of importation determined in accordance with the Agreement on Customs Valuation; and/or

(b)

For materials, parts or produce of undetermined origin, the earliest price as ascertained by the certifying authority to have been paid for in the territory of the Party where the working or processing takes place.

9.

Determination of Origin.

- No product shall be deemed to be a produce or manufacture of either Party unless the conditions specified in these rules are complied with in relation to such products, to the satisfaction of the authority issuing the certificate of origin.

10.

Accumulation.

- 1. A product manufactured in one Party and used in the territory of the other Party as a material for the finished product shall be considered as a product originating in the territory of the latter party provided that it;

(a)

complies with the origin requirements provided for in Rule 4 or 5; and

(b)

fulfils the criteria in Rule 7.

2. The origin of the finished product would be determined under Rule 5.

11.

Accessories, Spare Parts and Tools.

- Each Party shall provide that accessories, spare parts and tools delivered with a good that form part of the goods standard accessories, spare parts and tools, shall be treated as originating goods if the good is an originating good, and shall be disregarded in determining whether all the non-originating materials used in the production of the good undergo the applicable change in tariff classification, provided that;

(a)

the accessories, spare parts and tools are not invoiced separately from the good;

(b)

the quantities and value of the accessories, spare parts and tools are standard trade practice for the good in the domestic market of the exporting Party; and

(c)

if the good is subject to a qualifying value content requirement, the value of the accessories, spare parts, or tools shall be taken into account as originating or non-originating materials, as the case may be, in calculating the qualifying value content of the good.

12.

Treatment of Packing.

(a)

Packages and packing materials for retail sale:

(i)

Packages and packing materials for retail sale, when classified together with the packaged product, according to General Rule 5(b) of the Harmonised System, shall not be taken into account for considering whether all non-originating materials used in the manufacture of a product fulfil the criterion corresponding to a change of tariff classification of the said product.

(ii)

If the product is subject to an ad valorem percentage criterion, the value of the packages and packing materials for retail sale shall be taken into account in its origin assessment, in case they are treated as being one for customs purposes with the products in question.

(b)

Containers and packing materials for transport:

The containers and packing materials exclusively used for the transport of a product shall not be taken into account for determining the origin of any product, in accordance with General Rule 5(b) of the Harmonised System.

13.

Identical and Interchangeable Materials.

- 1. Where identical and interchangeable originating and non-originating materials including materials of undetermined origin are used in the manufacture of a product, those materials shall be physically segregated, according to their origin,

during storage.

2. A producer facing considerable costs or material difficulties in keeping separate stocks of identical and interchangeable originating and non-originating materials including materials of undetermined origin used in the manufacture of a product, may use the so-called "accounting segregation" method for managing stocks.

3. The accounting method shall be recorded, applied and maintained in accordance with generally accepted accounting principles applicable in the Party in which the product is manufactured. The method chosen must:

(a)

permit a clear distinction to be made between originating and non originating materials including materials of undetermined origin acquired and/or kept in stock; and

(b)

guarantee that no more products receive originating status than would be the case if the materials had been physically segregated.

4. The producer using this facilitation shall only complete origin declarations for the quantity of products considered as originating and shall assume full responsibility for the origin declarations and for keeping all documentary evidence of origin of the materials. At the request of the competent authorities of the exporting Party, the producer shall provide satisfactory information on how the stocks have been managed.

5. A Party may require that the application of the method for managing stocks as provided for in this Article is subject to prior authorisation.

14.

Advance Rulings.

- 1. Each Party shall provide for the issuance of written advance rulings, prior to the importation of a good into its territory, to an importer of the good in its territory or to an exporter or producer of the good in the exporting party, as to whether the good qualifies as an originating good. The importing Party may request, at any time during the course of evaluating the request for an advance ruling, additional information necessary to evaluate the request. The importing party shall issue its determination regarding the origin of the good within 120 days after receipt of all necessary information.

2. The importing Party shall apply an advance ruling to importation into its territory of the good for which the ruling was issued, for such period, which may be specified in the ruling.

3. The importing Party may modify or revoke an advance ruling:

(a)

if the ruling was based on an error of fact;

(b)

if there is a change in the material facts of circumstances on which the ruling was based; or

(c)

to conform with a modification of this Chapter.

4. Where the importing Party modifies or revokes an advance ruling, such modification or revocation shall only take effect 60 days after the date on which the modification or revocation is issued, and shall not apply to importation of a good that has occurred prior to the effective date.

5. Notwithstanding paragraphs 3 and 4 above, the importing Party may revoke any advance ruling ab initio, if the importer or exporter to whom the advance ruling was issued had provided false or incorrect information pursuant to the application for the ruling.

6. Apart from the advance ruling being revoked ab initio, the person who had provided the false or incorrect information shall also be liable to appropriate penalties under the domestic laws of the respective Parties.

15.

Consignment Criteria.

- The originating goods of the other Party (Sic) be deemed to meet the consignment criteria when they are

(a)

transported directly from the territory of the other Party; or

(b)

transported through the territory or territories of one or more non-Parties for the purpose of transit or temporary storing in warehouses in such territory or territories, and the products have not entered into trade or consumption there, provided

that

(i)

they do not undergo operations other than unloading, reloading or operations to preserve them in good conditions; or

(ii)

the transit entry is justified for geographical reason or by considerations related exclusively to transport requirements.

16.

Certificate of Origin.

- Products eligible for preferential concessions shall be supported by a Certificate of Origin issued by a government authority designated by the government of the exporting Party [(referred to herein as "the Issuing Authority")]

[Inserted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

and notified to the other Party [***]

[Omitted '(referred to herein as the certifying authority)' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

in accordance with the Operational Certification Procedures, as (Sic) Annex A.

17.

Co-operation on verification of Certificates of Origin.

- 1. The Parties shall co-operate with each other to verify the authenticity and the correctness of the information given in the certificates of origin.

2. For the purpose of implementing the provisions of paragraph 1, [the Customs Authority]

[Substituted 'the customs administration' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

of the importing Party shall return the certificate of origin, or a copy of the document, to [the Issuing authority]

[Substituted 'the certifying authority' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

of the exporting Party, giving the reason for the enquiry. Any document and/or information obtained suggesting that the information given on the certificate or origin is incorrect shall be forwarded in support of the request for verification.

3. The verification shall be carried out by [the Issuing authority]

[Substituted 'the certifying authority' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

of the exporting Party.

18.

Denial of Preferential Tariff Treatment.

- 1. Export of consignments accompanied by an authentic Certificate of Origin will not be subjected to any detention or delays by the Customs Authorities of the importing country.

2. In case of reasonable doubt about the authenticity of Certificate of Origin, the Customs authority of the importing country may seek a clarification from the certifying authority of the exporting country, which will furnish the same within a period of 30 days. Meanwhile, the subject consignment will be allowed entry into the importing country on a provisional basis against a bond or a guarantee i.e. a legally binding undertaking as may be required. After examining the information so provided by the certifying authority, the Customs Authority in the importing country would take appropriate action to finalise the provisional assessment.

3. Where the clarification carried on in above paragraph 2 is not conclusive, the importing Party may, upon informing the exporting Party and with the knowledge of the importer concerned and with the consent of the exporter or manufacturer concerned, visit the exporter or manufacturer concerned for the purpose of verifying the preference claim. If no consent is given by the exporter or manufacturer concerned within a period of 45 days, the importing party may disallow the tariff preference for the particular Certificate of Origin.

19.

Consultation and Modifications.

- These rules may be reviewed as and when necessary upon the request of either Party and may be modified by mutual agreement pursuant to Article 16,7 of the agreement on Comprehensive Economic Co-operation Agreement between Republic of India and Republic of Singapore.

Annex-A

Operational Certification Procedures

For the purpose of implementing the Rules of Origin, the following operational procedure on the issuance and verification of the Certificate of Origin and other related administrative matters, shall be followed:

(i)

Authorities

1. The Certificate of Origin (Attachment 1) shall be issued by the government authority designated by the exporting Party and notified to the other Party.

2. (a) Each Party shall inform the other Party of the names and addresses of the government officials issuing this Certificate of Origin and shall provide specimen signatures and official seals used by the government officials.

(b)

Any change in names, addresses, or official seals shall be promptly notified to the other Party.

3. For the purpose of verifying the conditions for preferential treatment, the government authority designated to issue the Certificate of Origin (hereinafter referred to as Issuing Authority) shall have the right to call for any supporting documentary evidence or to carry out any check considered appropriate.

(ii)

Applications

4. The manufacturer and/or exporter of the products qualified for preferential treatment shall apply in writing to the relevant Issuing Authority requesting for the pre-exportation verification of the origin of the products. The result of the verification, subject to review periodically or whenever appropriate, shall be accepted as the supporting evidence in verifying the origin of the said products to be exported thereafter. The pre-exportation verification may not apply to products, the origin of which can be easily verified, by their nature.

5. At the time of carrying out the formalities for exporting the products under preferential treatment, the exporter or his authorized representative shall submit a written application for the Certificate of Origin together with appropriate supporting documents proving that the products to be exported qualify for the issuance of a Certificate of Origin.

(iii)

Pre-Exportation Examination

6. The Issuing Authority shall, to the best of its competence and ability, carry out proper examination upon each application for the Certificate of Origin to ensure that:

(a)

The application and the Certificate of Origin are duly completed and signed by the authorised signatory;

(b)

The origin of the product is in conformity with the Rules of Origin of this Agreement;

(c)

The other statement of the Certificate of Origin correspond to supporting documentary evidence submitted; and

(d)

Description, quantity and weight of goods, marks and number of packages, number and kinds of packages, as specified, conform to the consignment to be exported.

(iv)

Issuance of Certificate of Origin

7. (a) The validity of the Certificate of Origin shall be 12 months from the date of its issuance.

(b)

The Certificate of Origin must be on ISO A4 size paper in conformity to the specimen shown in [Attachment]
[Substituted 'Appendix 1' by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

. It shall be made in English.

(c)

The Certificate of Origin shall comprise one original and three (3) carbon copies of the following colours:

Original

-

light grey

Duplicate

-

white

TriPLICATE

-

white

Quadruplicate

-

white

(d)

Each Certificate of Origin shall bear a reference number given separately by each place or office of issuance.

(e)

Aboriginal copy, together with the triplicate, shall be forwarded by the exporter to the importer for submission of the original copy to the Customs Authority at the port or place of importation. The duplicate shall be retained by the issuing authority in the exporting Party. The triplicate shall be retained by the importer and the quadruplicate shall be retained by the exporter

(f)

[In all cases, the number and date of the commercial invoice shall be indicated in the box reserved for this purpose in the Certificate of Origin.

[Inserted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

(g)

The Certificate of Origin shall bear the signature and official seal of the Issuing Authority. The signature and official seal may be applied electronically.]

8. To implement the provisions of Rule 3, Rule 4 and Rule 5 of Rules of Origin the Certificate of Origin issued by the exporting Party shall indicate the applicable Rules of Origin and the local value-added content, where applicable, in Box 8 of the Certificate of Origin.

9. Neither erasures nor superimpositions shall be allowed on the Certificate of Origin. Any alteration shall be made by striking out the erroneous materials and making any addition required. Such alterations shall be approved by an official authorised to sign the Certificate of Origin and certified by the Issuing Authority. Unused spaces shall be crossed out to prevent any subsequent addition.

10. (a) The Certificate of Origin shall be issued by the relevant Issuing Authority of the exporting Party at the time of exportation, or within 3 working days from the date of shipment whenever the products to be exported can be considered originating in that Party within the meaning of the Rules of Origin.

(b)

In exceptional case where a Certificate of Origin has not been issued at the time of exportation or within 3 working days from the date of shipment due to involuntary errors or omissions or other valid causes, the Certificate of Origin may be issued retroactively but no longer than one year from the date of shipment, bearing the word "ISSUED RETROACTIVELY"

11. In the event of theft, loss or destruction of a Certificate of Origin, the exporter may apply in writing to the Issuing Authority which issued it for the certified true copy of the original and the triplicate to be made on the basis of the export documents in their possession bearing the endorsement of the Word "Certified True Copy" (in lieu of the Original Certificate) in Box 12 of the Certificate of Origin. This copy shall bear the date of the original Certificate of Origin. The certified true copy of a Certificate of Origin shall be issued within the validity period of the original Certificate of Origin and on condition that the exporter provides to the Issuing Authority the quadruplicate mentioned in Rule 7.

(v)

Presentation

12. The Original Certificate of Origin shall be submitted to the Customs Authority at the (Sic) of loading the import entry for the products concerned.

13. The following time limit for the presentation of the Certificate of Origin shall be observed:

(a)

[Certificate of Origin shall be submitted to the Customs Authority of the importing Party within its validity period, together with the documents required at the time of customs clearance of the goods for the importation in accordance with the laws and regulations of the importing Party;

[Substituted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

(aa)

If a claim for preferential treatment is made without producing the Certificate of Origin, the Customs Authority of the

importing Party may deny preferential treatment and request a guarantee in any of its modalities or may take any action necessary in order to preserve fiscal interests, as a pre-condition for the completion of the importation subject to and in accordance with the laws and procedures of the importing Party. The guarantee shall be refunded to the importer if a Certificate of Origin is subsequently produced by the Importer in accordance to the laws and procedures of the importing Party.]

(b)

Where the Certificate of Origin is submitted to the Customs Authority of the importing Party after the expiration of the validity of the Certificate of Origin, such Certificate is still to be accepted when failure to observe the time-limit results from force majeure or other valid caused beyond the control of the exporter; and

(c)

In all cases, the relevant government authority in the importing Party may accept such Certificate of Origin provided that the products have been imported before the expiration of the validity of the Certificate of Origin.

14. The discovery of minor discrepancies between the statements made in the Certificate of Origin and those made in the documents submitted to the Customs Authority of the importing Party for the purpose of carrying out the formalities for importing the products shall not ipso-facto invalidate the Certificate of Origin, if it does in fact correspond to the said products.

(va)

[Retroactive Checks

[Substituted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

15. (a) The Customs Authority of the importing Party, may initiate a retroactive check relating to the authenticity of a certificate, as well as the veracity of the information contained therein, in accordance with the procedures established in the Rules, in cases of doubt or on random basis.

(b)

In cases where the Customs Authority of the importing Party deems it necessary to seek a retroactive check from the Issuing Authority of the exporting Party, it shall specify whether the verification is on random basis or the veracity of the information is in doubt. In case the determination of origin is in doubt, the Customs Authority shall provide detailed grounds for the doubt concerning the veracity of Certificate of Origin.

(c)

The Customs Authority of the importing Party may suspend the provisions on preferential treatment while awaiting the result of verification. However, it may release the products to the importer subject to any administrative measures deemed necessary, provided that they are not held to be subject to import prohibition or restriction and there is no suspicion of fraud.

15A.

Any request made pursuant to rule 15 shall be in accordance with the following procedure, namely:

(a)

The Customs Authority of the importing Party shall make a request for retroactive check by providing a copy of the Certificate(s) of Origin.

(b)

The Customs Authority shall specify whether it requires a verification of the genuineness of the Certificate of Origin to rule out any forgery, or seeks to verify the determination of Origin.

(c)

In cases where the Customs Authority of the importing Party seeks to verify the determination of origin, it shall send a questionnaire to the competent authorities of the exporting Party, which shall be passed on to the exporter/producer/manufacture, for such inquiry or documents, as necessary.

(d)

The Issuing Authority of the exporting Party shall provide the information and documentation requested, within:

(i)

fifteen days of the date of receipt of the request, if the request pertains to the authenticity of issue of the Certificate of Origin, including the seal and signatures of the Issuing Authority;

(ii)

ninety days from the date of receipt of such request, if the request is on the grounds of suspicion of the accuracy of the

determination of origin of the product. Such period can be extended through mutual consultation between the Customs Authority of the importing Party and Issuing Authority of the exporting Party for a period no more than sixty days.

(e)

On receiving the results of the retroactive check pursuant to clause (d), if the Customs Authority of the importing Party deems it necessary to request for further information, the Customs Authority of the importing Party shall communicate the fact to the Issuing Authority of the exporting Party within thirty days. The term for the presentation of additional information shall be not more than ninety days, from the date of the receipt of the request for the additional information.]

16. (a) The application for Certificates of Origin and all documents related to such application shall be retained by the Issuing Authority for not less than two years from the date of issuance.

(b)

Information relating to the validity of the Certificate of Origin shall be furnished upon request of the importing Party.

(c)

Any information communicated among the government authorities shall be treated as confidential and shall be used for the validation of Certificates of Origin purposes only.

(vi)

Special Cases

17. When destination of all or parts of the products exported to specified port is changed, before or after their arrival in the importing Party, the following Rules shall be observed.

(a)

If the products have already been submitted to the Customs Authority in the specified importing port, the Certificate of Origin shall, by a written application of the importer, be endorsed to this effect for all or parts of products by the said authority and the original returned to the importer.

(b)

If a change of destination occurs during transportation to the importing Party as specified in the Certificate of Origin, the exporter shall apply in writing, accompanied with the issued Certificate of Origin, for the issuance of new Certificate/s of Origin for all or parts of products.

18. For the purpose of implementing paragraph (b) of Rule 15 of 'Rules of Origin' where transportation is effected through the territory of one or more non-parties, the following shall be produced to the government authorities of the importing Party:

(a)

A through Bill of Lading issued in the exporting Party;

(b)

A Certificate of Origin issued by the Issuing Authority of the exporting Party;

(c)

A copy of the original commercial invoice in respect of the product; and

(d)

Supporting documents in evidence that the requirements of paragraph (b) of Rule 15 of 'Rules of Origin' are being complied with.

19. (a) Products sent from one Party for exhibition in the other Party and sold during or after the exhibition, for importation into the other Party shall benefit from the preferential tariff treatment provided in the Agreement, on the condition that the products meet the requirements of the 'Rules of Origin' and provided it is shown to the satisfaction of the relevant government authorities of the importing Party that;

(i)

An exporter has dispatched those products from the territory of the exporting Party to the importing Party where the exhibition is held and has exhibited them there;

(ii)

The exporter has sold the goods or transferred them to a consignee in the importing Party; and

(iii)

The products have been sold during the exhibition or immediately thereafter to the importing Party in the condition in which they were sent for the exhibition.

(b)

For the purpose of implementing the above provisions, the Certificate of Origin must be produced to the relevant government authorities of the importing Party. The name and address of the exhibition must be indicated, a certificate issued by the relevant government authority of the Party where the exhibition took place together with supporting documents prescribed in paragraph (d) of Rule 18 may be required.

(c)

Paragraph (a) shall apply to any exhibitions, fairs or similar shows or displays where the products remain under Customs control during these events.

(vii)

Action Against Fraudulent Acts

20.

(a) When it is suspected that fraudulent acts in connection with the Certificate of Origin have been committed, the Issuing Authorities concerned shall cooperate in the action to be taken in the territory of each Party against the persons involved.

(b)

Each Party shall be responsible for providing legal sanctions for fraudulent acts related to the Certificate of Origin.

21.

In the case of a dispute concerning origin determination, classification of products or other matters, the government authorities concerned in the importing and exporting Parties shall consult each other with a view to (Sic) the dispute.

[Annex B]

[Substituted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

Product Specific Rules

Sr. No.

EX

Tariff Item Number as per HS 2002

Description of Products

Specific Rule

(1)

(2)

(3)

(4)

(5)

1

Chapter 1

Live animals

Wholly obtained

2

Chapter 2

Meat and edible meat offal

All materials of Chapter 1 and 2 used shall be

wholly obtained

3

Chapter 3

Fish and crustaceans, molluscs and other aquatic

invertebrates

Wholly obtained

4

Chapter 4

Dairy produce; bird? eggs; natural honey;

edible products of animal origin, not elsewhere specified or

included

Wholly obtained

5

Chapter 5

Products of animal origin, not elsewhere
specified or included

Wholly obtained

6

Chapter 11

Products of the milling industry; malt;
starches; inulin; wheat gluten

All materials of Chapter 7, 8 and 10 used should
be wholly obtained

7

Chapter 12

Oil seeds and oleaginous fruits; miscellaneous
grains, seeds and fruit; industrial or medicinal plants; straw
and fodder

Wholly obtained

8

Chapter 13

Lac; gums, resins and other vegetable saps and
extracts

Wholly obtained

Chapter 15

Animal or vegetable fats and oils and their
cleavage products; prepared edible fats; animal or vegetable
waxes

1507

Soya-bean oil and its fractions, whether or not
refined, but not chemically modified

9

150790

- Other

CTH or VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

10

1508

Ground-nut oil and its fractions, whether or not
refined, but not chemically modified

CTSH or VA $\geq$ 35% based on direct method or
 $\leq$ 65% based on indirect method

11

1509

Olive oil and its fractions, whether or not
refined, but not chemically modified

CTSH or VA $\geq$ 35% based on direct method or
 $\leq$ 65% based on indirect method

12

151000

Other oils and their fractions, obtained solely
from olives, whether or not refined, but not chemically modified,
including blends of these oils or fractions with oils or

fractions of heading 1509

CTSH or VA $\geq$ 35% based on direct method or
 $\leq$ 65% based on indirect method

Chapter 16

Preparations of meat, of fish or of crustaceans,
molluscs or other aquatic invertebrates

1604

Prepared or preserved fish; Caviar and caviar
substitutes prepared from fish eggs

13

160420

- Other prepared or preserved fish

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

Chapter 18

Cocoa and cocoa preparation

14

1804

Cocoa butter, fat and oil

VA $\geq$ 40% based on direct method or $\leq$ 60%
based on indirect method

15

1805

Cocoa powder, not containing added sugar or
other sweetening matter

VA $\geq$ 40% based on direct method or $\leq$ 60%
based on indirect method

Chapter 19

Preparations of cereals, flour, starch or milk;
pastrycooks' products

1901

Description: Malt extract; food preparations of
flour, groats, meal, starch or malt extract, not containing cocoa
or containing less than 40 % by weight of cocoa calculated on a
totally defatted basis, not elsewhere specified or included; food
preparations of goods of headings 0401 to 0404, not containing
cocoa or containing less than 5 % by weight of cocoa calculated
on a totally defatted basis, not elsewhere specified or included

16

190190

- Other

CTSH or VA $\geq$ 35% based on direct method or
 $\leq$ 65% based on indirect method

Chapter 21

Miscellaneous edible preparations

2103

Sauces and preparations therefor; mixed
condiments and mixed seasonings; Mustard flour and meal and
prepared mustard

17

210310

- Soya sauce

CTH

2106

Food preparations not elsewhere specified or included

18

210610

- Protein concentrates and textured protein substances

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

Chapter 23

Residues and waste from the food industries; prepared animal fodder

2309

Preparations of a kind used in animal feeding

19

230910

- Dog or cat food, put up for retail sale

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

Chapter 29

Organic chemicals

2905

Acyclic alcohols and their halogenated, sulphonated, nitrated or nitrosated derivatives

- Saturated monohydric alcohols:

20

290512

-- Propan-1-ol (propyl alcohol) and propan-2-ol (isopropyl alcohol)

CTH

21

290513

-- Butan-1-ol (n-butyl alcohol)

CTH

22

290516

-- Octanol (octyl alcohol) and isomers thereof:

CTSH or VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

23

290516

- - Other

VA $\geq$ 40% based on direct method or $\leq$ 60% based on indirect method

24

290723

-- 4,4'-Isopropylidenediphenol (bisphenol A, diphenylolpropane) and its salts

CTSH

2912

Aldehydes, whether or not with other oxygen
function; Cyclic polymers of aldehydes; Paraformaldehyde
- Acyclic aldehydes without other oxygen
function:

25

291219

-- Other:

CTH

2916

Unsaturated acyclic monocarboxylic acids, cyclic
monocarboxylic acids, their anhydrides, halides, peroxides and
peroxyacids; their halogenated, sulphonated, nitrated or
nitrosated derivatives

- Unsaturated acyclic monocarboxylic acids,
their anhydrides, halides, peroxides, peroxyacids and their
derivatives:

291612

-- Esters of acrylic acid:

26

Ex --- Butyl acrylate

CTSH

2917

Polycarboxylic acids, their anhydrides, halides,
peroxides and peroxyacids; their halogenated, sulphonated,
nitrated or nitrosated derivatives

- Acylic polycarboxylic acids, their anhydrides,
halides, peroxides, peroxyacids and their derivatives:

27

291712

-- Adipic acid, its salts and esters

CTH

28

291739

Ex --- Dioctyl phthalate

RVC 40% based on direct method or 60% based on
indirect method

Chapter 38

Miscellaneous chemical products

3824

Prepared binders for foundry moulds or cores;
Chemical products and preparations of the chemical or allied
industries (including those consisting of mixtures of natural
products), not elsewhere specified or included

382490

- Other

29

Ex -- Electroplating salts; water treatment
chemicals; ion exchanger; correcting fluid; precipitated silica
and silica gel; oil well chemical: - /kGramophone records making
material

CTH

Chapter 39

Plastics and articles thereof

3910

Silicones in primary forms

30

391000

- Silicones in primary forms:

VA $\geq$ 35% based on direct method or $\leq$ 35%

based on indirect method

Chapter 44

Wood and articles of wood; wood charcoal

31

4401

Fuel wood, in logs, in billets, in twigs, in

faggots or in similar forms; Wood in chips or particles; Sawdust

and wood waste and scrap, whether or not agglomerated in logs,

briquettes, pellets or similar forms

CTH

32

4402

Wood charcoal (including shell or nut charcoal),

whether or not agglomerated

CTH

33

4403

Wood in the rough, whether or not stripped of

bark or sapwood, or roughly squared

CTH

34

4404

Hoopwood; Split poles; Piles, pickets and stakes

of wood, pointed but not sawn lengthwise; Wooden sticks, roughly

trimmed but not turned, bent or otherwise worked, suitable for

the manufacture of walking-sticks, umbrellas, tool handles or the

like; Chipwood and the like.

CTH

35

4407

Wood sawn or chipped lengthwise, sliced or

peeled, whether or not planed, sanded or end-jointed, of a

thickness exceeding 6 mm

CTH

36

4408

Sheets for veneering (including those obtained

by slicing laminated wood), for plywood or for similar laminated

wood and other wood, sawn lengthwise, sliced or peeled, whether

or not planed, sanded, spliced or end-jointed, of a thickness not

exceeding 6mm

CTH

37

4410

Particle board, oriented strand board (osb) and similar board (for example, waferboard) Of wood or other ligneous materials, whether or not agglomerated with resins or other organic binding substances

CTH

38

4411

Fibre board of wood or other ligneous materials, whether or not bonded with resins or other organic substances

CTH

39

4412

Plywood, veneered panels and similar laminated wood

CTH

40

4420

Wood marquetry and inlaid wood; Caskets and cases for jewellery or cutlery, and similar articles, of wood; Statuettes and other ornaments, of wood; Wooden articles of furniture not falling in Chapter 94

CTH

Chapter 48

Paper & paperboard, articles of paper pulp, of paper or of paperboard

4818

Toilet paper and similar paper, cellulose wadding or webs of cellulose fibres, of a kind used for household or sanitary purposes, in rolls of width not exceeding 36 cm, or cut to size or shape, handkerchiefs, cleansing tissues, towels, table clothes, serviettes, napkins for babies, tampons, bed sheets and similar household, sanitary or hospital articles, articles of apparel and clothing accessories, of paper pulp, paper, cellulose wadding or webs of cellulose fibres

41

481840

- Sanitary towels and tampons, napkins and napkin liners for babies and similar sanitary articles

CTH

Chapter 49

Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans 4901 Printed books, brochures, leaflets and similar printed matter, whether or not in single sheets

42

490110

- In single sheets, whether or not folded

VA >= 40% based on direct method or <= 60%

based on indirect method

43

490199

-- Other

VA $\geq$ 40% based on direct method or $\leq$ 60%
based on indirect method

44

490290

- Other

CTH

45

EX

491199

- - Hard copy (printed) of computer software

CTH

Chapter 64

Footwear, gaiters and the like; parts of such
articles

46

6401

Waterproof footwear with outer soles and uppers
of rubber or of plastics, the uppers of which are neither fixed
to the sole nor assembled by stitching, riveting, nailing,
screwing, plugging or similar processes

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

47

6402

Other footwear with outer soles and uppers of
rubber or plastics

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

48

6403

Footwear with outer sole of rubber, plastics,
leather or composition leather and uppers of leather

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

49

6404

Footwear with outer soles of rubber, plastics,
leather or composition leather and uppers of textile materials

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

50

6405

Other footwear

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

51

6406

Parts of footwear (including uppers whether or

not attached to soles other than outer soles); removable
in-soles, heel cushions and similar articles; gaiters, leggings
and similar articles, and parts thereof

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

Chapter 84

Nuclear reactors, boilers, machinery and
mechanical appliances; parts thereof

8401

Nuclear reactors; Fuel elements (cartridges),
non-irradiated, for nuclear reactors; Machinery and apparatus for
isotopic separation

52

840120

- Machinery and apparatus for isotopic
separation, and parts thereof

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

53

840140

- Parts of nuclear reactors

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8402

Steam or other vapour generating boilers (other
than central heating hot water boilers capable also of producing
low pressure steam) super-heated water boilers

54

840290

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8403

Central heating boilers other than those of
heading 8402

55

840390

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8407

Spark-ignition reciprocating or rotary internal
combustion piston engines

- Reciprocating piston engines of a kind used
for the propulsion of vehicles of Chapter 87:

56

840731

-- Of a cylinder capacity not exceeding 50 cc

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

57

840732

-- Of a cylinder capacity exceeding 50 cc but
not exceeding 250 cc
CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

58

840733

-- Of a cylinder capacity exceeding 250 cc but
not exceeding 1000 cc
CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

59

840734

-- Of a cylinder capacity exceeding 1000 cc:
CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

8411

Turbo-jets, turbo-propellers and other gas
turbines

- Parts:

60

841191

-- Of turbojets or turbo propellers
VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

61

841199

-- Other
VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8413

Pumps for liquids, whether or not fitted with a
measuring device; Liquid elevators

- Parts:

62

841392

-- Of liquid elevators
VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8415

Air-conditioning machines, comprising a
motor-driven fan and elements for changing the temperature and
humidity, including those machines in which the humidity cannot
be separately regulated

63

841510

- Window or wall types, self-contained or
"split-system"
CTSH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

64

841520

- Of a kind used for persons, in motor vehicles:
CTSH + VA $\geq$ 40% based on direct method or $\leq$ 60% based on indirect method

8416

Furnace burners for liquid fuel, for pulverised solid fuel or for gas; Mechanical stokers, mechanical grates, mechanical ash dischargers and similar appliances

65

841690

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8417

Industrial or laboratory furnaces and ovens, including incinerators, nonelectric

66

841790

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8418

Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air-conditioning machines of heading 8415

- Parts:

67

841891

-- Furniture designed to receive refrigerating or freezing equipment

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8420

Calendering or other rolling machines, other than for metals or glass, and cylinders therefor

- Parts:

68

842091

-- Cylinders

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8436

Other agricultural, horticultural, forestry, poultry-keeping or bee-keeping machinery, including germination plant fitted with mechanical or thermal equipment; Poultry incubators and brooders

- Parts:

69

843691

-- Of poultry-keeping machinery or poultry incubators and brooders

VA >= 35% based on direct method or <= 65%
based on indirect method

70

843699

-- Other

VA >= 35% based on direct method or <= 65%
based on indirect method

8437

Machines for cleaning, sorting or grading seed,
grain or dried leguminous vegetables; Machinery used in the
milling industry or for the working of cereals or dried
leguminous vegetables, other than farm-type machinery

71

843790

- Parts:

VA >= 35% based on direct method or <= 65%
based on indirect method

8439

Machinery for making pulp of fibrous cellulosic
material or for making or finishing paper or paperboard

- Parts:

72

843991

-- Of machinery for making pulp of fibrous
cellulosic material

VA >= 35% based on direct method or <= 65%
based on indirect method

8442

Machinery, apparatus and equipment (other than
the machine-tools of headings 8456 to 8465) for preparing or
making plates, cylinders or other printing components; plates,
cylinders and other printing components; plates, cylinders and
lithographic stones, prepared for printing purposes (for example,
planed, grained or polished)

73

844240

- Parts of the foregoing machinery, apparatus or
equipment

VA >= 35% based on direct method or <= 65%
based on indirect method

74

844331

-- Machines which perform two or more of the
functions of printing, copying or facsimile transmission, capable
of connecting to an automatic data processing machine or to a
network

CTSH

75

844332

-- Other, capable of connecting to an automatic
data processing machine or to a network

CTSH

8448

Auxiliary machinery for use with machines of heading 8444, 8445, 8446 or 8447 (for example, dobbies, Jacquards, automatic stop motions, shuttle changing mechanisms); parts and accessories suitable for use solely or principally with the machines of this heading or of heading 8444, 8445, 8446 or 8447 (for example, spindles and spindle flyers, card clothing, combs, extruding nipples, shuttles, healds and heald-frames, hosiery needles)

- Parts and accessories of weaving machines (looms) or of their auxiliary machinery:

76

844849

-- Other:

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8453

Machinery for preparing, tanning or working hides, skins or leather or for making or repairing footwear or other articles of hides, skins or leather, other than sewing machines

77

845390

- Parts:

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8454

Converters, ladles, ingot moulds and casting machines, of a kind used in metallurgy or in metal foundries

78

845490

- Parts:

VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8456

Machine-tools for working any material by removal of material, by laser or other light or photon beam, ultrasonic, electrodischarge, electro-chemical, electron beam, ionic-beam or plasma arc processes

79

845630

- Operated by electro-discharge processes

VA 40% based on direct method or 60% based on indirect method

80

8459

Machine tools (including way-type unit head machines) for drilling, boring, milling, threading or tapping by removing metal, other than lathes (including turning centres) of heading 8458

VA >= 40% based on direct method or <= 60%

based on indirect method

8466

Parts and accessories suitable for use solely or principally with the machines of headings Nos. 8456 to 8465, including work or tool holders, self-opening dieheads, dividing heads and other special attachments for machine-tools; Tool holders for any type of tool for working in the hand

81

846630

- Dividing heads and other special attachments for machine-tools:

VA >= 35% based on direct method or <=

65% based on indirect method

8468

Machinery and apparatus for soldering, brazing or welding, whether or not capable of cutting, other than those of heading 8515; Gas-operated surface tempering machines and appliances

82

846890

- Parts

VA >= 35% based on direct method or <= 65%

based on indirect method

83

847170

- Storage units

CTH

84

EX

847141

-- Micro computer

CTSH

85

EX

847141

- - Large or main frame computer

CTSH

86

8472

Other office machines (for example, hectograph or stencil duplicating machines, addressing machines, automatic banknote dispensers, coin sorting machines, coin counting or wrapping machines, pencil-sharpening machines, perforating or stapling machines)

VA >= 40% based on direct method or <= 60%

based on indirect method

87

847330

- Parts and accessories of the machines of heading 8471

CTH

8478

Machinery for preparing or making up tobacco not
specified or included elsewhere in this Chapter

88

847890

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

89

848620

- Machines and apparatus for the manufacture of
semiconductor devices or of electronic integrated circuits

CTSH

Chapter 85

Electrical machinery and equipment and parts
thereof; sound recorders and reproducers, television image and
sound recorders and reproducers, and parts and accessories of
such articles

8504

Electrical transformers, static converters (for
example, rectifiers) and inductors

90

EX

850440

- - Electric inverters

CTSH

91

EX

850440

- - Rectifier: Dip bridge rectifiers

CTSH

8507

Electric accumulators, including separators
therefor, whether or not rectangular (including square)

92

850710

- Lead-acid, of a kind used for starting piston
engines

CTH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

93

850720

- Other lead-acid accumulators

CTSH + VA $\geq$ 40% based on direct method or $\leq$
60% based on indirect method

8510

Shavers, hair clippers and hair-removing
appliances, with self-contained electric motor

94

851090

- Parts

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

8511

Electrical ignition or starting equipment of a kind used for spark-ignition or compression-ignition internal combustion engines (for example, ignition magnetos, magneto-dynamos, ignition coils, sparking plugs and glow plugs, starter motors); generators (for example, dynamos, alternators) and cutouts of a kind used in conjunction with such engines

95

851120

- Ignition magnetos; magneto-dynamos; magnetic flywheels

CTSH + VA $\geq$ 40% based on direct method or $\leq$

60% based on indirect method

96

851130

- Distributors; ignition coils

CTSH + VA $\geq$ 40% based on direct method or $\leq$

60% based on indirect method

97

851140

- Starter motors and dual purpose

startergenerators

CTSH + VA $\geq$ 40% based on direct method or $\leq$

60% based on indirect method

8512

Electrical lighting or signalling equipment (excluding articles of heading 8539), windscreen wipers, defrosters and demisters, of a kind used for cycles or motor vehicles

98

851240

- Windscreen wipers, defrosters and demisters

CTH + VA $\geq$ 40% based on direct method or $\leq$

60% based on indirect method

8516

Electric instantaneous or storage water heaters and immersion heaters; Electric space heating apparatus and soil heating apparatus; Electro-thermic hair-dressing apparatus (for example, hair dryers, hair curlers, curling tong heaters) and hand dryers; Electric smoothing irons; other electro-thermic appliances of a kind used for domestic purposes; electric heating resistors, other than those of heading 8545

99

851650

- Microwave ovens

CTH + VA $\geq$ 40% based on direct method or $\leq$

60% based on indirect method

8517

Telephone sets, including telephones for cellular networks or for other wireless networks; other apparatus for the transmission or reception of voice, images or other data, including apparatus for communication in a wired or wireless network (such as a local or wide area network), other than transmission or reception apparatus of heading 8443, 8525, 8527 or 8528

100

851762

-- Machines for the reception, conversion and transmission or regeneration of voice, images or other data, including switching and routing apparatus

CTSH

101

851769

-- Other

CTSH

102

EX

851770

- - Populated, loaded or stuffed printed circuit

boards

CTSH

103

EX

851770

- - Other

CTH

8521

Video recording or reproducing apparatus, whether or not incorporating a video tuner

104

EX

852190

- - Video duplicating system with master and slave control

CTH

8523

Discs, tapes, solid-state non-volatile storage devices, "smart cards" and other media for the recording of sound or of other phenomena, whether or not recorded, including matrices and masters for the production of discs, but excluding products of Chapter 37

105

8523

Prepared unrecorded media for sound recording or similar recording of other phenomena, other than products of Chapter 37

CTH

8525

Transmission apparatus for radiobroadcasting or

television, whether or not incorporating reception apparatus or
sound recording or reproducing apparatus; television cameras,
digital cameras and video camera recorders

106

EX

852550

- - Broadcast equipment sub-system

CTH

107

EX

852550

- - Wireless microphone

CTH

108

EX

852550

- - Other

CTH

109

852580

- Television cameras, digital cameras and video
camera recorders

CTH

8528

Monitors and projectors, not incorporating
television reception apparatus; reception apparatus for
television, whether or not incorporating radio-broadcast
receivers or sound or video recording or reproducing apparatus

110

852859

-- Other

CTH

8536

Electrical apparatus for switching or protecting
electrical circuits, or for making connections to or in
electrical circuits (for example, switches, relays, fuses, surge
suppressors, plugs, sockets, lamp-holders and other connectors,
junction boxes), for a voltage not exceeding 1,000 volts;
connectors for optical fibres, optical fibre bundles or cables

111

853669

-- Other

CTH

8542

Electronic integrated circuits

112

854231

-- Processors and controllers, whether or not
combined with memories, converters, logic circuits, amplifiers,
clock and timing circuits, or other circuits

CTSH

113

854232

-- Memories

CTSH

114

854233

-- Amplifiers

CTSH

115

854239

-- Other

CTSH

8543

Electrical machines and apparatus having individual functions, not specified or included elsewhere in this Chapter

116

854310

- Particle accelerators: Ion implanters for doping semiconductor material

CTSH

117

854370

- Other machines and apparatus: Proximity card and tags

CTSH

118

854390

- Parts

CTSH or VA $\geq$ 35% based on direct method or $\leq$ 65% based on indirect method

8544

Insulated (including enamelled or anodised) wire, cable (including co-axial cable) and other insulated electric conductors, whether or not fitted with connectors; Optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors

119

854430

- Ignition wiring sets and other wiring sets of a kind used in vehicles, aircraft or ships
CTH + VA $\geq$ 40% based on direct method or $\leq$ 60% based on indirect method

8548

Waste and scrap of primary cells, primary batteries and electric accumulators; spent primary cells, spent primary batteries and spent electric accumulators; electrical parts of machinery or apparatus, not specified or included elsewhere in this Chapter

120

854890

- Other

CTSH

Chapter 86

Railway or tramway locomotives, rolling-stock
and parts thereof; railway or tramway track fixtures and fittings
and parts thereof; mechanical (including electro-mechanical)
traffic signalling equipment of all kinds

8607

Parts of railway or tramway locomotives or
rolling-stock

Brakes and parts thereof:

121

860721

-- Air brakes and parts thereof

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

122

860729

-- Other

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

123

860730

- Hooks and other coupling devices, buffers, and
parts thereof

VA $\geq$ 35% based on direct method or $\leq$
65% based on indirect method

Other parts:

124

860791

-- Of locomotives

VA $\geq$ 35% based on direct method or $\leq$
65% based on indirect method

125

860799

-- Other:

VA $\geq$ 35% based on direct method or $\leq$ 65%
based on indirect method

8608

Railway or tramway track fixtures and fittings;
mechanical (including electromechanical) signalling, safety or
traffic control equipment for railways, tramways, roads, inland
waterways, parking facilities, port installations or airfields;
parts of the foregoing

126

860800

- Railway or tramway track fixtures and
fittings; Mechanical (including electromechanical) signalling,
safety or traffic control equipment for railways, tramways,
roads, inland waterways, parking facilities, port installation or

airfields; Parts of the for

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

Chapter 88

Aircraft, spacecraft, and parts thereof

8803

Parts of goods of heading 8801 or 8802

127

880310

- Propellers and rotors and parts thereof

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

128

880320

- Under-carriages and parts thereof

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

8804

Parachutes (including dirigibleparachutes and
paragliders) and rotochutes; Parts thereof and accessories
thereto

129

880400

- Parachutes (including dirigibleparachutes and
paragliders) and rotochutes; Parts thereof and accessories
thereto:

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

8805

Aircraft launching gear; Deck-arrestor or
similar gear; Ground flying trainers; Parts of the foregoing
articles

130

880510

- Aircraft launching gear and parts thereof;
deck-arrestor or similar gear and parts thereof:

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

- Ground flying trainers and parts thereof:

131

880521

-- Air combat simulators and parts thereof

VA $\geq$ 35% based on direct method or $\leq$

65% based on indirect method

132

880529

-- Other

VA $\geq$ 35% based on direct method or $\leq$ 65%

based on indirect method

Chapter 90

Optical, photographic, cinematographic,

measuring, checking, precision, medical or surgical instruments
and apparatus; parts and accessories thereof

9007

Cinematographic cameras and projectors, whether
or not incorporating sound recording or reproducing apparatus

133

900792

-- For projectors

CTH

134

9011

Compound optical microscopes, including those
for photomicro-graphy, cinephotomicrography or microprojection

VA $\geq$ 40% based on direct method or $\leq$ 60%

based on indirect method

9012

Microscopes other than optical microscopes;
diffraction apparatus

135

EX

901210

- - Electron microscopes fitted with equipment
specifically designed for the handling and transport of
semiconductor wafers or reticles

CTSH

136

EX

901210

- - Other

VA $\geq$ 40% based on direct method or $\leq$ 60%

based on indirect method

137

901290

- Parts and accessories

VA $\geq$ 40% based on direct method or $\leq$ 60%

based on indirect method

9013

Liquid crystal devices not constituting articles
provided for more specifically in other headings; lasers, other
than laser diodes; other optical appliances and instruments, not
specified or included elsewhere in this Chapter

138

901380

- Other devices, appliances and instruments

VA $\geq$ 40% based on direct method or $\leq$ 60%

based on indirect method

139

EX

901390

- - For liquid crystal devices (LCD)

CTH

140

EX

901390

- - Other

VA >= 40% based on direct method or <= 60%

based on indirect method

9018

Instruments and appliances used in medical, surgical, dental or veterinary sciences, including scientigraphic apparatus, other electro-medical apparatus and sight-testing instruments

141

901811

-- Electro-cardiographs

CTH

142

901839

- - Cardiac catheters

CTH

901890

- Other instruments and appliances:

143

Ex ---- Surgical tools: bone saws, drills, trephines

CTH

144

Ex ---- Surgical tools: knives, scissors and blades

CTH

145

Ex ---- Surgical tools: Forceps, forcep clamps, clips, needles holders, introducers, cephalotribe bone holding and other holding instruments

CTH

146

Ex ---- Surgical tools: Chisel, gauges, elevators raspatones, osteotome, craniotome, bone cutters

CTH

147

Ex ---- Surgical tools: retractors, spatula probes, hooks dialators, sounds, mallets

CTH

147

Ex ---- Surgical tools: Other

CTH

149

Ex ---- Renal dialysis equipment, blood transfusion apparatus and haemofiltration instruments: Renal dialysis equipment (artificial kidneys, kidney machines and dialysers)

CTH

150

Ex ---- Renal dialysis equipment, blood
transfusion apparatus and haemofiltration instruments: Blood
transfusion apparatus

CTH

151

Ex ---- Renal dialysis equipment, blood
transfusion apparatus and haemofiltration instruments:
Haemofiltration instrument

CTH

152

Ex ---- Anesthetic apparatus and instruments,
ENT precision instruments, acupuncture apparatus, and endoscopes:
Anaesthetic apparatus and instruments

CTH

153

Ex ---- Anesthetic apparatus and instruments,
ENT precision instruments, acupuncture apparatus, and endoscopes:
ENT precision instruments

CTH

154

Ex ---- Anesthetic apparatus and instruments,
ENT precision instruments, acupuncture apparatus, and endoscopes:
Acupuncture apparatus

CTH

155

Ex ---- Anesthetic apparatus and instruments,
ENT precision instruments, acupuncture apparatus, and endoscopes:
Endoscopes

CTH

156

Ex ---- Other: Hilerial and venous shunt

CTH

157

Ex ---- Other: Baby incubators

CTH

158

Ex ---- Other: Heartlung machine

CTH

159

Ex ---- Other: Fibrescope

CTH

160

Ex ---- Other: Laproscope

CTH

161

Ex ---- Other: Vetrasonic lithotripsy
instruments

CTH

162

Ex ---- Other: Apparatus for nerve stimulation

CTH

163

Ex ---- Other: other

CTH

9027

Instruments and apparatus for physical or chemical analysis (for example, polarimeters, refractometers, spectrometers, gas or smoke analysis apparatus); instruments and apparatus for measuring or checking viscosity, porosity, expansion, surface tension or the like; instruments and apparatus for measuring or checking quantities of heat, sound or light (including exposure meters); microtomes

164

902790

- - Printed circuit assemblies for the goods of sub-heading 9027 80

CTH

Chapter 94

Furniture; bedding, mattresses, mattress supports, cushions and similar stuffed furnishings; lamps and lighting fittings, not elsewhere specified or included; illuminated signs, illuminated nameplates and the like; prefabricated buildings

9401

Seats (other than those of heading 9402), whether or not convertible into beds, and parts thereof

165

940190

- Parts

VA >= 35% based on direct method or <= 65% based on indirect method.

[Attachment

[Substituted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

]

Original (Duplicate/Triplicate/Quadruplicate)

1. Goods consigned from (Exporter's business name, address, country)

Reference No.

India-Singapore Comprehensive Economic Co-Operation Agreement (Combined Declaration and Certificate) Issued in: India / Singapore

See Notes Overleaf

2. Goods consigned to (Consignee's name, address, country)

3. Means of transport and route (as far as known) Departure date Vessel's name/Aircraft etc. Port of Discharge

4. For Official Use Preferential Treatment Given Under ISCECA Preferential

Treatment Not Given (Please state reason/s).....

Signature of Authorised Signatory of the

Importing Country

5. Item number

6. Marks and numbers on packages

7. Number and type of packages, description of

goods (including quantity where appropriate and number of the importing HS country)

8. Origin criterion (see Notes overleaf)

9. Gross weight or other quantity and value (FOB)

10. Number and date of invoices

11. Declaration by the exporter

12. Certification

The undersigned hereby declares that the above

details and statement are correct; that all the goods were

produced in.....(Country) and that they comply with the origin requirements

specified for these goods in the ISCECA for the goods exported to.....(Importing

Country).....Place and date, signature of authorised signatory

It is hereby certified, on the basis of control

carried out, that the declaration by the exporter is correct.....Place and date,

signature and stamp of certifying authority

[Overleaf Notes

[Substituted by Notification No. G.S.R. 881(E), dated 14.9.2018 (w.e.f. 20.7.2005).]

]

1. India and Singapore will accept this form for the purpose of preferential treatment under the INDIA-SINGAPORE Comprehensive Economic Co-operation Agreement.

2. Conditions: The main conditions for admission to the preferential treatment under the INDIA-SINGAPORE Comprehensive Economic Co-operation Agreement are that goods sent to the Parties:

(i)

must fall within a description of products eligible for concessions in the country of destination;

(ii)

must comply with the consignment conditions that the goods must be consigned directly from exporting Party to the importing Party but transport that involves passing through one or more intermediate countries, is also accepted provided that any intermediate transit, transshipment or temporary storage arises only for geographic reasons or transportation requirements; and

(iii)

must comply with the origin criteria given the Chapter on Rules of Origin.

3. Origin Criteria: For goods that meet the origin criteria, the exporter must indicate in Box 8 of this form the origin criteria on the basis of which he claims that his goods qualify for preferential treatment, in the manner shown in the following table:

Circumstances of production or manufacture in

the first country named in Box 11 of this form

Insert in Box 8

(a) Products wholly produced in the country of exportation as defined in Article 3.3 of the Chapter on Rules of Origin

"X"

(b) Products worked upon but not wholly produced in the exporting Party which were produced in conformity with Article 3.4 of the Chapter on Rules of Origin

Percentage of single country content, example

35%

(c) Products worked upon but not wholly produced in the exporting Party which were produced in conformity with Article 3.9 of the Chapter on Rules of Origin

Percentage of ISCECA cumulative content, example

35%

(d) Products satisfied the Product Specific

Rules as defined in Article 3.4(b) of the Chapter on Rules of Origin

"Product Specific Rules"

(e) Products satisfied De Minimis defined in

Article 3.4A of the Chapter on Rules of Origin

Appropriate qualifying criteria

4. Each Article Must Qualify: It should be noted that all the products in a consignment must qualify separately in their own right. This is of particular relevance when similar articles of different sizes or spare parts are sent.

5. Description of Products: The description of products must be sufficiently detailed to enable the products to be identified by the Customs Officers examining them. Name of manufacturer, any trade mark shall also be specified.

6. The Harmonised System number shall be that of the importing Party.

7. The term "Exporter" in Box 11 may include the manufacturer or the producer.

8. For Official Use: The Customs Authority of the importing Party must indicate (?) in the relevant boxes in column 4 whether or not preferential treatment is accorded.

Related AI tags, queries and research notes

Translation